



**THE POLICE COMMISSIONER
CITY OF NEW YORK**

**MEMORANDUM IN SUPPORT OF NYPD'S DEVIATION FROM
THE DISCIPLINARY SYSTEM PENALTY GUIDELINES**

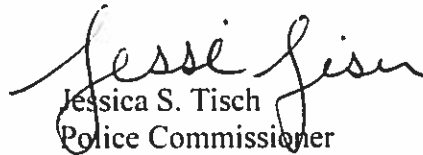
Re: PODS Case No. C-039313 regarding Police Officer Nicholas Brandi, Tax No. 979735

Date: September 4, 2026

This disciplinary matter was investigated by the Civilian Complaint Review Board ("CCRB") which involved allegations that Police Officer Brandi made offensive and discourteous remarks towards an individual, and used a chokehold. CCRB has determined that a Matrix deviation from the Disciplinary System Penalty Guidelines is warranted.

I concur with the downward deviation for the reasons articulated by CCRB in the attached correspondence.

Therefore, a penalty consisting of the issuance of a Schedule "A" Command Discipline with the forfeiture of one (1) vacation day for the discourtesy, offensive language and chokehold, as recommended by CCRB, will be imposed in this matter.


Jessica S. Tisch
Police Commissioner



ZOHRA K. MANDANI
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 • TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



SHERENE CRAWFORD
INTERIM CHAIR

MEMORANDUM

TO: Police Commissioner, New York Police Department
FROM: Executive Director, Civilian Complaint Review Board
SUBJECT: Substantiated allegations for CCRB case number 202502678 involving:
PO Nicholas Brandi, tax registry number 979735, MTN PCT
PO Nicholas Polanco, tax registry number 980326, MS TIMES SQ
DATE: July 16, 2026

I: OVERVIEW

On July 16, 2026, panel 7B-2026 of the Civilian Complaint Review Board met and reviewed the above-referenced case. The details of the complaint, the allegations and the panel's findings are summarized below.

The 18 Month statute of limitations applicable to this case expires on 09-02-2026.

II: SUMMARY OF FACTS & INVESTIGATOR RECOMMENDATIONS

On March 4, 2025, Lieutenant Raymond Chang of Transit District 30 filed this complaint via phone with LAB on behalf of [REDACTED] after conducting an audit of BWC footage. On March 20, 2025, this complaint was received at the CCRB.

On March 2, 2025, at approximately 4:06 a.m., at the 15th Street – Prospect Park subway station in Brooklyn, Police Officers Nicholas Brandi and Nicholas Polanco, both of Transit District 34, approached Mr. [REDACTED] to place him under arrest regarding a stolen cell phone and both officers used a forcible takedown (Allegations A-B: Abuse of Authority, Within NYPD Guidelines; Allegations C-D: Force, Within NYPD Guidelines). PO Brandi then used a hand-strike against Mr. [REDACTED] (Allegation E: Force, Within NYPD Guidelines) and PO Brandi used a chokehold against Mr. [REDACTED] (Allegation F: Force, Substantiated). Throughout the incident Mr. [REDACTED] complained to officers that he could not breathe (Allegation G: Force, Unable to Determine). While handcuffing Mr. [REDACTED] PO Brandi used the word “fuck” at several points (Allegation H: Discourtesy, Within NYPD Guidelines). PO Brandi also told Mr. [REDACTED] “Oh you fucking bitch” (Allegation I: Offensive Language, Substantiated; Allegation J: Discourtesy, Substantiated). Later in the incident, Sergeant Matthew Biondo and Police Officer Ernest Simmons, both of Transit District 30, arrived and spoke with the civilian whose phone was stolen, who opted not to press charges against Mr. [REDACTED] because the officers were able to recover his cell phone. Sgt. Biondo then ordered PO Brandi and PO Polanco to release Mr. [REDACTED] and Mr. [REDACTED] was free to leave without additional incident. The officers offered Mr. [REDACTED] their business cards, but Mr. [REDACTED] refused and walked away.

PO Brandi and PO Polanco failed to activate their Body-Worn Cameras (BWC) for the initial investigation regarding the stolen cell phone (Allegations K-L: Abuse of Authority, Substantiated). PO Brandi and PO Polanco failed to prepare a Threat, Resistance, or Injury Report for the force used against Mr. [REDACTED] (Allegations M-N: Other Possible Misconduct, Other Possible Misconduct Noted).

No arrests or summonses resulted from this incident.

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| K) | Abuse of Authority:
Police Officer Nicholas Brandi failed to activate his body-worn camera.

Mitigating Reasons: Totality of circumstances
Aggravating Reasons: NA | Substantiated - Mitigating: negligent |
| L) | Abuse of Authority:
Police Officer Nicholas Polanco failed to activate his body-worn camera.

Mitigating Reasons: Totality of circumstances
Aggravating Reasons: NA | Substantiated - Mitigating: negligent |
| M) | Other Possible Misconduct Noted:
Police Officer Nicholas Brandi failed to prepare a Threat, Resistance, or Injury (TRI) Report in accordance with NYPD Patrol Guide Procedure 221-03. | Other Possible Misconduct Noted |
| N) | Other Possible Misconduct Noted:
Police Officer Nicholas Polanco failed to prepare a Threat, Resistance, or Injury (TRI) Report in accordance with NYPD Patrol Guide Procedure 221-03. | Other Possible Misconduct Noted |

The Board finds that penalty recommendations should run concurrently for allegations I, J.

IV: BOARD DISCIPLINE RECOMMENDATIONS

PO Nicholas Brandi

Substantiated (Command Discipline A)
Police Officer Nicholas Brandi: Matrix Deviation Reasons: Allegation F: the panel deviated to a penalty of Command Discipline A for allegation F (chokehold) because the officers were rookies and showed CV compassion, and while there was technically a 1-2 second chokehold the officer immediately self-corrected when he realized where he had grabbed the CV.

PO Nicholas Polanco

Substantiated (Command Discipline A)

IV: OTHER MISCONDUCT

The Board recommends the following for further investigation:

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| M) | Other Possible Misconduct Noted: Police Officer Nicholas Brandi failed to prepare a Threat, Resistance, or Injury (TRI) Report in accordance with NYPD Patrol Guide Procedure 221-03. |
| N) | Other Possible Misconduct Noted: Police Officer Nicholas Polanco failed to prepare a Threat, Resistance, or Injury (TRI) Report in accordance with NYPD Patrol Guide Procedure 221-03. |